

SEYCHELLES

10th Consultation on the Implementation of the 1960 Convention and Recommendation against Discrimination in Education (2020)

SEYCHELLES NATIONAL COMMISSION FOR UNESCO

LIST OF ACRONYMS

A Level Advanced Level
ACS Accreditation certification Section
ALDEC Adult Learning and Distance Education Centre
ANHRD Agency for National Human Resource Development
APHI Association for People with Hearing Impairment
ASP Agency for Social Protection
ATP Aspiring Teacher Programme
BLM Blended Learning Mode
CEDAW Convention on the Elimination of All Forms of Discrimination against Women
DELF Diplôme D'études en Langue Française
DICT Department of Information Communications Technology
EMIS Education Management Information System
GCE General Certificate in Education
ICT Information and Communication Technology
IECD Institute of Early Childhood Development
IGCSE International General Certificate of Secondary Education
ISCED International Standard Classification of Education
ISO/FDIS International Standard for Building Construction 21542).
MEHRD Ministry of Education and Human Resource Development
NBS National Bureau of Statistics
NIHSS National Institute for Health and Social Studies
NISTI National Institute for Science, Technology and Innovation
NQF National Qualifications Framework
PC Professional Centres
PPBB Programme Performance Based Budgeting
PSCE Personal Social and Citizenship Education
RPL Recognition of Prior Learning
S.I.T.E Seychelles Institute of Teacher Education
SADC Southern African Development Community
SBSA Seychelles Institute of Business studies and Accounting
SEACMEQ Southern and East African Consortium for Monitoring Educational Quality
SEC School for the Exceptional Child
SEND Special Education Needs and Disabilities
SIAD Seychelles Institute of Art and Design
SIAH Seychelles Institute of Agricultural and Horticulture
SIALS Seychelles Integrated Adult Learning Survey
SIDOL Seychelles Institute of Distance and Open Learning
SIT Seychelles Institute of Technology
SMA Seychelles Maritime Academy
SQA Seychelles Qualifications Authority
STA Seychelles Tourism Academy
STEM Science, Technology, Engineering and Mathematics
Tertiary Education Act (2011)
TEC Tertiary Education Commission
TGMI The Guy Morel Management Institute
TMDP Teacher Management Development Policy

TVET Technical and Vocational Training
TVETE Technical Vocational Education and Training and Entrepreneurship
UNCRPD United Nations Convention on the Rights of Persons with Disabilities
UNESCO United Nations Educational, Scientific and Cultural Organisation
UNESCO IBE International Bureau of Education
UNISEY University of Seychelles

INSTITUTIONS CONSULTED FOR THE REPORT:

Ministry of Education and Human Resource Development (MEHRD):
Agency for National Human Resource Development (ANHRD)
Department of Education Early childhood, Primary and Secondary Education (ECPSE)
Department of Tertiary Education and Human Resource Development (TEHRD)
Education Management Information System (EMIS)
Institute of Early Childhood Development (IECD)
Primary and Secondary School Divisions
School for the Exceptional Child (SEC)
Seychelles Institute of Distance and Open Learning (SIDOL)
Seychelles Qualifications Authority (SQA)
S.I.T.E Seychelles Institute of Teacher Education
Tertiary Education Commission (TEC)

OTHERS:

APHI Association for People with Hearing Impairment
Human Rights Commission
Ministry of Family Affairs
Ministry of Employment, Immigration and Civil Status
National Bureau of Statistics
NISTI National Institute for Science, Technology and Innovation

SPECIAL THANKS TO:

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GENERAL INFORMATION: Country name: **SEYCHELLES**

Organization or entity responsible for the preparation of the report: **SEYCHELLES NATIONAL COMMISSION FOR UNESCO**

I. INFORMATION ON THE LEGISLATIVE, JUDICIAL, ADMINISTRATIVE AND OTHER MEASURES TAKEN BY THE STATE AT THE NATIONAL LEVEL

1. Ratification of the Convention¹

Is your country a State Party to the Convention?

☒ **YES.** Acceptance since **07 July 2010. Entry into force. 27 October 2010.**

National Focal point is the Ministry of Education and Human Resource Development.

Seychelles education system has undergone five major reforms during the past 40 years. However, its philosophy and principles still remain the same. It encompasses both formal and non-formal educational frameworks.

The formal education framework consists of the following main levels: pre-primary, primary, secondary upper secondary (Cambridge A-Level), Tertiary Non-University Education and Training (Professional Centres), and Tertiary University Education and Training. The informal educational framework includes non-formal early childhood, adult education and social and youth activities. Up to December 2015 in Seychelles, free and compulsory education was of 10 years duration, from ages 6 to 15. It covered six years in primary and four years in secondary education. From January 2016, this has been increased to 11 years, with an additional year in secondary.

☐ **No:** Does your country plan to ratify this instrument?

☐ **Yes:** Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

• Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

- the obstacles, whether legal, institutional, political or practical
- the means of overcoming them and the extent to which UNESCO can assist in completing the process

¹http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

N/A

☐ No, not considering ratification in the near future. Please explain why:

N/A

Ratification of the Protocol² instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☐ NO please briefly explain the difficulties encountered:

Reason unknown.

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

• ☒ YES

☐ No

• If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Main legal texts:

Laws of Seychelles CAP 42 Constitution of the Republic of Seychelles (1993)

Clause 33. Right to education

“The State recognizes the right of every citizen to education and with a view to ensuring the effective realization of this right undertakes:

a) to provide compulsory education , which shall be free in State schools, for such minimum period, which shall not be less than ten years, as may be prescribed by law;

b) to ensure that the educational programmes in all schools are aimed at the complete development of the person

c) to afford on the basis of intellectual capabilities, every citizen equal access to educational opportunities and facilities beyond the period of compulsory education

➤ **Education (Amendment) Act, 2017**

²http://portal.unesco.org/en/ev.php-URL_ID=15321&URL_DO=DO_TOPIC&URL_SECTION=201.html

Part 4 Rights and responsibilities of students and parents

Right to education

40. *All persons are entitled to receive an educational programme appropriate to their needs in accordance with this Act and regulations made thereunder*

41. (1) *The Principal Secretary shall provide every child of compulsory school age or any person who is a resident of Seychelles with an educational programme in accordance with this Act.*

2 In implementing subsection (1), The Principal Secretary shall-

- (a) enroll the child in an educational programme offered by the Ministry*
- (b) direct the child to attend an educational programme offered by another educational institution where it is reasonable to do so.*

Compulsory school attendance

49 (1) *Every child shall attend school from the beginning of school calendar in the school year until the child has completed the compulsory school age*

Boys and girls have equal access to eleven years in line with the Education (Amendment) Act, 2017. The enrolment rate and primary school completion rate is nearly 100% for both sexes. Seychelles pursues the goal of ensuring that quality education is provided throughout the educational life cycle.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ NO

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

N/A

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

N/A

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

N/A

II. INFORMATION ON THE IMPLEMENTATION OF THE CONVENTION OR RECOMMENDATION

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for nondiscrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.³

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply⁴ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum

Additional information:

Seychelles signed the United Nations Convention on the Right of Persons with Disabilities (UNCRPD) in 2009, which signifies a change in approach to the delivery of education services for children with disabilities. Some objectives of the articles in the UNCRPD Convention have direct relevance to the Seychelles Education System such as in the following:

In line with Article 9 provision is made as far as possible for mainstream schools to be accessible to children with disabilities and teachers are equipped with the necessary skills to work with these children.

In addition, in line with Article 24 education policies clearly articulate the types of provision necessary for children with disabilities to have access to appropriate adaptive aids/ equipment which will facilitate their learning.

The Ministry of Education and Human Resource Development ensures that existing infrastructure and facilities are upgraded to comply with the norms and specifications as stipulated by international agreements such as the International Standard for Building Construction (ISO/FDIS 21542).

☐ Other:

- **Please provide a brief description of the relevant legal, regulatory or policy texts including measures on: *Non-discrimination in the admission of pupils to educational institutions***
- ***Non-differential treatment, including of foreign nationals resident in your country***

1. Education for a learning society policy statement of the Ministry of Education Seychelles (2000) Equity

³Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁴See: Article/Paragraph 1(1).

In Seychelles, equity has largely been achieved in terms of equality of access to schools and to programmes of education and training. The concept of equity now needs to be extended to provide for programmes which will enhance the conditions for optimum achievement by every group, including the gifted, the slow learner and the learning-disabled. Emphasis also needs to be put on redressing gender imbalances in performance within general education, as well as providing equal opportunities for training and fair chances of success to both genders at the post-secondary level. Training opportunities need to be extended to match the career aspirations and ability profiles of young people and maximise the contribution of every individual to national development.

“Equity” encapsulates the following key concepts:

- ◆ *equality of access to compulsory education*
 - ◆ *equitable sharing of resources*
 - ◆ *equal opportunity / creating conditions for optimum achievement, according to ability and career aspirations*
 - ◆ *ensuring that the context, content and medium of education are equally favourable to boys and girls*
 - ◆ *catering for special needs / working towards greater ‘inclusion’ of the learning-disabled*
- (Page 2)

2. Education (Amendment) Act, 2007 provision for private schools is made:

Part 3 Private Educational institutions

Complaints discrimination

39. (1) *Where a complaint is made by an interested party that a private school or educational institution has refused to admit a child or has expelled a student on account of the race, religion, or political affiliation of, or on any other unreasonable ground of discrimination relating to, the child, student or parent, the Principal secretary shall hold an inquiry into the complaint.*

(2) The Principal Secretary shall communicate his or her determination in writing to the complainant and the relevant private school or educational institution and the determination may include such directions to the proprietor of the private school or educational institution as may be necessary to redress the grievance complained of.

All students including foreign residing students are entitled to free and compulsory education up to Secondary 5 in accordance with international conventions for immigrant workers.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

This notably is covered under SDG target 4.1 and partly target 4.b⁵

⁵ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

3-Inclusive Education Policy (2015)

Main provisions of Inclusive Education Policy:

- i. Promote equity and inclusion to enable all learners including those with Special Education Needs and Disabilities (SEND) to benefit fully from quality education.*
- ii. Make provision for a range of services geared towards early prevention and identification, planning, assessment strategies and intervention.*
- iii. Make provision for learning, teaching and assessment which respond to the needs of different learning styles and to the abilities, talents, identities and experiences of all children.*
- iv. Promote the inclusion of all children including those with SEND in mainstream/regular school system at all levels, and ensure their full integration within the education system.*

4. Seychelles National Development Strategy 2019-2023 PILLAR 2: ‘People at the Centre of Development’ in Chapter 2 Broad Strategy for Development

GOAL 2: EDUCATED, EMPOWERED AND RESPONSIBLE CITIZENS ENGAGED IN BUILDING A SUSTAINABLE, INCLUSIVE AND EQUITABLE SOCIETY

Goal 2 calls for the investment in education which will in turn lead to significant development benefits, in line with the achievement of SDG 4 which is to ensure inclusive and equitable quality education and promote life-long learning opportunities for all, mostly attained through two strategies:

- 2.1 Promote greater and more effective inclusiveness in education and lifelong learning for every age group.*
- 1.2 Reform the education system for the realities of Seychelles today and for the future.*

2-Education (Amendment Act) 2017

Special Education

15 (1) *The Minister shall provide special education programmes for students of compulsory school age who, by reason of intellectual, communicative, behavioural, physical or multiple exceptionalities, are in need of special education.*

(2) *A student who is entitled to a special education programme shall have the programme delivered in the least restrictive and most enabling environment “*

(3) *The Special Education programmes shall be developed in consultation with the professionals or experts in the field, having regard to the educational needs and rights of children;*

(4) *The Special Education programmes, may, on such terms and conditions as the Principal Secretary deem appropriate, be extended to students beyond compulsory school age.*

In line with these regulations there is:

- A School called ***School for the Exceptional Child*** established since 1994.

The School for the Exceptional Child (SEC) caters for students with Special Education Needs and Disabilities (*SEND*) aged from 3 and a ½ years to 16+ years.

In 2019 there were 25 Seychellois teaching staff and 85 students of which 83 Seychellois, 1 Indian & 1 Malagasy. (45 males and 40 females), giving a ratio of roughly four students per teacher.

Source: *Education Management Information System (EMIS) Education Statistics Booklet, December 2019.*

A Centre is also available for students on the other 2 islands who cannot access services offered by SEC.

- **The National Council for Disabled Persons Act 1994**

The functions of the Council are mainly

- *promote, develop and organise services and programmes for rehabilitation and employment of disabled persons;*
- *advise the Government on education, sports, training programmes, employment and vocational training courses for disabled persons;*

In line with this Act, a Day School established in 2004 offers vocational training for disability students for integration in the world of work

- **The Association for People with Hearing Impairment (APHI)**

The Association founded in 2005 is run by deaf and hearing members. The main objective is to ensure that deaf people in Seychelles enjoy the same rights as their hearing peers. APHI opened the first school for the deaf in 2010 at Au Cap and launched the Sign Language interpreter services, the Deaf Sports Association and most recently published the Seychellois Sign language dictionary in 2019.

- A learning Centre for Autistic students and adults will be open in the near future.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- ☒ Providing financial incentives and fellowships
- ☒ Providing positive or affirmative action measures
- ☒ Ensuring inclusion in mainstream schools for all learners
- ☒ Training teachers on inclusive education
- ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)
- ☒ Eliminating all barriers for pregnant girls or young mothers in education⁶
- ☒ Providing re-entry programmes for young mothers
- ☒ Providing auxiliary assistance
- ☒ Adapting education infrastructure
- ☒ Adapting curricula and methods
- No Providing language classes to newcomers (e.g. refugees)**

⁶ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

- ☒ Eliminating administrative barriers to education
- ☒ Providing flexible learning pathways
- ☒ Valuing diversity in schools
- ☒ Combatting stereotyping and stigmatisation

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- ☒ Providing financial incentives and fellowships

1) Financial Assistance For Learners In Compulsory Education

Ministry of Education and Human Resource Development:

a) Guidelines For The Management of The Dedicated Fund By Schools (September 2018)

Following the implementation of its Macro-Economic Reform Programme in 2008, Government decided to allocate funds to all state schools to ensure that no child is deprived of the necessities likely to affect school attendance. A yearly allocation was made according to the size of schools; small and medium sized schools, and large and extra-large schools.

However, following a review in 2018, changes have been made in regards to allocation of funds to schools. The Agency for Social Protection (ASP) is the only body responsible to disburse funds to the primary and Secondary Schools. The size of schools is no longer a criterion for allocation of funds.

The Dedicated Funds makes provision for snacks, meals, uniform, bus fares, and assistance for needy cases or other unforeseen circumstances. (Refer to guidelines on website)

- ☒ Providing positive or affirmative action measures

- b) For A Level students (Upper secondary) A monthly allowance of Rs 800 (equivalent of **USD dollars 40**) is available*
- c) For Professional Centres (PCs) a monthly allowance of Rs 800-1200 (equivalent of **USD dollars 40-60**) is provided depending on the year of study of the student*
- d) For students from the other main islands who are residing at the Students Youth Hostel on Mahé, main island, for further studies not available education on other islands), a monthly allowance of Rs 1200 (equivalent of **USD dollars 60**).*

2) Financial Assistance for Learners in Non-Compulsory Education

Monthly payment of assistance child-minders' salary government's incentive: (non-compulsory education)

- a) Since **2016**, the government has been providing financial assistance to registered childcares to support them in the implementation of national standards to raise quality of service and ensure children are well cared.*

- b) Since **2020**, the Financial Assistance for Parents accessing a registered childcare service is a new initiative providing financial support to help parents meet the costs of childcare for children from 4 months of age (16 weeks) to 3 years (36 months). (Refer to Institute of Early Childhood Child Development (IECD) website for guidelines)

☑ Ensuring inclusion in mainstream schools for all learners
(Refer to Inclusive Policy above)

☑ Ensuring gender parity in Science, Technology, Engineering and Mathematics (STEM) and Technical and Vocational training (TVET)

There is no discrimination in the choice of candidates for Vocational and admission in Professional (TVET) Centres. However the percentage of girls enrolling on TVET depends on the content of courses. Courses for TVET are open to both girls and boys. Admission is based on grades irrespective of gender. More and more girls are enrolling on male oriented programme of studies like in the case of maritime and construction areas at the Seychelles Maritime Academy and Seychelles Institute of Technology. Some girls outperform boys. There are gender gaps in vocational training but this is gradually changing.

Mechanisms are in place to encourage more women and girls to study STEM subjects (Science, Technology, Engineering and Mathematics). STEM has been integrated in the curriculum with the assistance from United Nations Educational, Scientific and Cultural Organisation. International Bureau of Education (UNESCO IBE). A national committee with representatives from different sectors has been set up to address STEM issues.

As part of the National Policy and Strategy 2016-2025, the National Institute for Science, Technology and Innovation (NISTI) is working in collaboration with the Ministry of Education and Human Resource Development (MEHRD) to organize activities to inspire the youth in the choice of careers for STEM to help reverse the trend of poor performance in STEM-related subjects.

The strategy starts with building awareness of the importance of STEM in the local context through extra-curricular activities at schools, which include;

1. Opening of Science, Technology and Innovation clubs in all schools.
2. Putting in place STEM programmes around the frontier technologies, which include robotics, Artificial Intelligence (AI), Unmanned Aerial Vehicles, Renewable Energy, Block chain, Biotechnology and other technologies that are relevant to the Seychelles context.

To ensure gender parity in STEM, NISTI makes it a priority to have females' participation at par with that of males. Having an all-girls' team as Seychelles Team for the First Global Robotics Challenge held in Mexico City in 2018 could prove this. At national level female students are encouraged to participate in all STEM-related activities at their respective schools as well in national STEM-based challenges.

➤ **Training teachers on inclusive education**

A compulsory module including *Learners with Special Needs* of 60 notional hours comprising 30 contact hours and 30 non-contact (equivalent of 6 credits) is taught in the second year of teacher training at the Seychelles Institute of Teacher Education (S.I.T.E).

☑ Adapting education infrastructure

➤ **Adapting curricula and methods and providing flexible learning pathways**

In January 2018 a special programme was put in place in secondary schools to better cater for the needs of students. Two pathways of studies for the fourth and fifth year of compulsory education were introduced: a General Education and Skills Development Pathway and Academic and Technical Education Pathway. This was open to all. According to available data from the Technical Vocational Education and Training and Entrepreneurship (TVETE) Division more girls opt for the academic pathway due to their general good performance. Boys lag behind girls in academic performance at primary and secondary levels.

☒ Eliminating all barriers for pregnant girls or young mothers in education⁷

☒ Providing re-entry programmes for young mothers

There are two Pregnancy Support policies; one for Secondary (*compulsory education*) and the other for Professional Centers (*Non compulsory*)

a) Secondary schools

The Teenage Pregnancy Policy (2005)

Aims

The Teenage Pregnancy Policy in place since 2005 aims to provide procedures, guidelines, and regulations for schools, the Student services section in the Ministry and the parents to assist them in decision making, and providing support for young girls who become pregnant before completing their formal education cycle. On one hand, the Ministry's aim is to prevent teenage pregnancy and make provision for educational services for the pregnant student. On the other hand, it establishes prevention measures in the (Personal Social and Citizenship Education (PSCE) lessons and support of school counsellors.

The policy provides for continued access to education after delivery based on the student's choice.

(Refer to Policy on MEHRD Website)

In 2019, **18 teenage pregnancies** were recorded.

b) Professional Centres (PCs)

Pregnancy Policy (2019)

This legal policy is designed to assist and support learners who are about to become parents or have become parents during the period of their training programme of study with the Professional Centre.

The PC believes pregnancy should not be considered as a barrier and is thus strongly committed to provide full support for learners during their pregnancy by making arrangements for them to continue their studies successfully in a safe and flexible environment. Arrangements may vary from programme to programme.

(Refer to Policy on MEHRD Website)

☒ Adapting education infrastructure

Au Cap School

A class with 8 children with hearing and speech impairment attend lessons classes. The children are taught how to use Seychelles Sign Language and can follow their own syllabus in line with the Inclusive Education policy. The class is annexed to the main primary school. The school is specially

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

equipped to meet the demands of the children. There are two specialized Sign Language teachers assisted by a helper. For certain subjects, the class shares staff from the mainstream school. APhi monitors the work of the teachers but the Headteacher oversees the general performance of the learners.
(Refer to APhi' work above)

☐ Other:

- Please elaborate further on the measures taken, including those to ensure gender equality *and the empowerment of girls and women in and through education*

➤ **GENDER EQUALITY AND THE EMPOWERMENT OF GIRLS AND WOMEN IN AND THROUGH EDUCATION**

Seychelles has a National Gender Policy in place since 2016.

Main Policy Objectives:

3.4.1. *Ensure the mainstreaming of gender perspectives into all policies, structures, systems, programmes and activities in order to make them gender responsive and contribute to the effective achievement of sustainable socio-economic and political development.*

3.4.2. *Harmonise legislative and administrative frameworks with international and (sub) regional gender-related instruments to achieve set targets on gender equality and equity.*

3.4.3. *Provide an overarching framework to guide State and Non State Actors (NSAs) in the attainment of gender equality and equity.*

(Source National Gender Policy 2016)

Seychelles has made great strides in the area of women representation, with gender parity in the Cabinet of Ministers, the level of women participation in key areas sectors such as the National Assembly, judiciary, police, governing boards, national committees, and in business especially proprietors is remarkable and commendable.

Education and training

Seychelles continues to adopt and implement gender sensitive educational policies and programmes addressing gender stereotypes in education, and where necessary, enact laws that promote equal access and retention in early childhood, primary, secondary, tertiary, vocational and non-formal education.

The Southern and East African Consortium for Monitoring Educational Quality (SEACMEQ) III study of 2007-2009 shows that boys in the final year of primary (P6) consistently underperform compared to girls.

Measures

The government has conducted a number of studies and implemented pilot approaches to creating school environments that are equally affirming to both boys and girls. (Refer to *Gender differences in the educational achievement of boys and girls in primary schools in Seychelles* Forum for African Women Educationalists (FAWE) (2002).

Implementation of recommendations from those studies is ongoing. According to national disaggregated data women and girls are predominant across different levels: from child upbringing, education and work places. This has been strongly influenced by our cultural heritage which continues to perpetuate in education and society in general.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

MARRIAGE AGE IN SEYCHELLES

Seychelles has the following legislation for minimum age for marriage:

Extract from **Civil Status Act (PART IV - ACTS OF MARRIAGE (1980))**

Qualifications and conditions necessary for contracting marriage:

Age of parties

40. *A male person under the age of eighteen years or a female under the age of fifteen years cannot contract marriage. But the Minister may for grave causes authorise any person under the above age to contract marriage.*

Consent

41. *There is no marriage when there is no consent*

For the past 20 years or more Seychelles Civil Status office has not registered any marriage under age for parental consent.

2. Progress made with respect to implementing the right to education in the context of SDG4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☒ Pre-primary education is compulsory:

Please provide the age of enrolment and duration:

Pre-primary education for Seychelles is 0 to 5+ years of which 0 to 3 years is not compulsory and not free and is provided by private institutions.

⁸Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

Pre-primary education for children aged from 3 - 5+ years, the service is provided by both state and private. At State level it is free but not compulsory, whilst at private level it is not free and not compulsory.

Age of enrolment and duration: For the first level, officially known as Day Care, (0 - 3 years) and the second level officially known as Crèche, (3+ to 5+ years), provision is made at District level for Day Cares. Each Primary school has its adjoining Crèche to facilitate access.

As per available data 99 % of parents choose to send their children to State or private Crèches.

It should be noted that in addition to the above, provision for home based child minding services in line with IECD Act 2014 is also made. Such services are not compulsory and not free.

➤ **Institute of Early Childhood Development Act 2014 (IECD Act 28 of 2014)**

The Institute known as the Institute of Early Childhood Development is a body corporate and has been established under the Act 2014. As the body providing leadership and strategic direction in Early Childhood Care and Education nationally, and in order to fulfil its mission of improving the quality and accessibility of care and education, the IECD has the following main provisions under its Act:

- *advise the government on the development of policies, guidelines and standards to regulate the childminding service;*
- *ensure that childminders comply with the guidelines and standards of childminding service and childminding establishment as may be prescribed by regulations;*
- *monitor and evaluate the childminding establishment and childminding service provided by a childminder; and*
- *implement, monitor and evaluate early childhood development programmes and projects;*

Since 2016 to date, as the regulator for childminding service, the Institute has registered 81 childminders which span across the country. Prior to registration of their service, the childminders attend a series of pre-registration and sensitisation training sessions on ten mandatory and quality national standards offered by the IECD. These national standards are part of the IECD National Standards for Childminding Regulation (2016).

In addition, Childminders have opportunities to participate in ongoing professional development trainings on specific areas of need following their registration with IECD. Currently, the IECD is working in close partnership with the Seychelles Institute of Teacher Education (S.ITE) to develop an accredited and award-bearing training programme for current and prospective childcare providers in the country. The training will be offered on a full and part-time basis, by S.IT.E and it will be effective in 2021. This will boost the capacity of workforce and help to raise the quality of service provision in early childhood care and education sector.

The average age of childminder's assistant is 33 years.

The tables 1 and 2 show the number of children in Registered Childminding Establishments, by gender 2020

<i>Table 1 Number of Children in Registered Childminding Establishments, by Gender, 2020</i>					
Age	4 months to 12 months	13 months to 24 months	25 months to 36 months	37 months to 48 months	Grand Total
Male	31	84	107	91	313
Female	45	113	103	106	367
Grand total	76	197	210	197	680

and Staff in Registered Childminding Establishments, by Gender, 2020

<i>Table 2 Number of Staff in Registered Childminding Establishments, by Gender, 2020</i>					
	Average Age	2019		2020	
		Female	Male	Female	Male
No. of Childminders	48	82	01	81	00
No. Assistant Childminders	-	69	11	66	11
Grand total		151	12	147	11

IECD Statistics 2020

With regards to childminding establishments, the number remains more or less constant over the past two years. However, emphasis is being put on those who are offering an unregistered service in the communities to participate in training and register their services. Currently, around 50 participants are attending training sessions organised by IECD and they will receive their certificates in September 2020.

Moreover, with the introduction of the Government's New Financial Assistance for Childcare in February 2020, to provide incentive for parents to enrol their child or children in registered childcare service, more childminders are taking steps to register their service in order to benefit from the assistance.

Difficulties related to access:

The difficulties being faced in this sector is the lack of childcare facilities (including day care centres) in the communities for working parents. However, it is worth noting that Government is placing emphasis on building facilities in local districts to bring the service closer to the community and improve accessibility by service users. In total, as at December 2019, there were 28 Day Care centres, of which facilities for 14 centres were owned by Government. From January 2020 to date the number of registered Day Centres stands at 29. Government has built four (4) new Day Care centres and will be operational during the last quarter of 2020. In addition, the Government is planning to build another five Day Care centres to ease the increasing demands for the service, at least in the short to medium term beyond 2020.

☐ Pre-primary education is free of charge for all: Please provide the duration:

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Day Care Centres are available on other islands. More than 94% of the age distribution is between 2 to 4 years old.

In 2019, there were 28 registered Day Care Centres in Seychelles catering for children (babies, toddler and in some cases, older kids) from zero to 7 years old. There was a total of 1449 children (53% male & 47% female) enrolled, compared to 1335 children (52% male & 48% female) in 2018.

There was a total of 1449 children (767 males and 682 females) enrolled in Registered Day Care Centres in 2019.

Source: *EMIS Education Statistics Booklet, December 2019*

The table below shows the number of pupils enrolled by gender and number of classrooms in State and Private Crèches, 2019.

<i>Table 3 Total Number of Pupils Enrolled by Gender and Number of Classrooms in State and Private Crèches, 2019</i>													
	Year one				Year 2				Crèche				
Schools	Male	Female	Total	Classes	Male	Female	Total	Classes	Male	Female	Total	Classes	Teacher /Pupil ratio
State	660	638	1298	73	683	631	1314	73	1343	1269	2612	146	18
Private	115	114	229	9	107	118	225	8	222	232	454	17	27
Grand Total	775	752	1527	82	790	749	1539	81	1565	1501	3066	163	19

Source: *EMIS Education Statistics Booklet, December 2019*

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

➤ **Laws of Seychelles CAP 42 Constitution of the Republic of Seychelles**

Clause 33. Right to education

“The State recognizes the right of every citizen to education and with a view to ensuring the effective realization of this right undertakes:

- a) to provide compulsory education , which shall be free in State schools, for such minimum period, which shall not be less than ten years, as may be prescribed by law;*

➤ **Education (Amendment) Act 2017**

“Compulsory education means education from Primary 1 to Secondary 5 or its equivalent”

Please indicate the current duration period of compulsory education and the age of enrolment:

Age of enrolment: 6 (Year 1 to year 6) **Duration:** 6 years

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

The table below shows the total number of students enrolled by gender and number of classrooms in state and private primary schools, 2019.

Table 5 : Total Number of Students Enrolled by Gender and Number of Classrooms in State and Private Primary Schools, 2019

Schools	Male	Female	Total	Classes	Teacher /pupil ratio
State (25)	4142	4028	8170	367	22
Private (5)	563	650	1213	47	26
Grand Total	4705	4678	9383	414	23

Source: EMIS Education Statistics Booklet, December 2019

- Is primary education available free of charge to all?

☒ **Yes:** Please provide the duration and indicate the extent to which it is.

“For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).”

42. (1) of the Education (Amendment) Act 2017

Free tuition

No tuition fee shall be charged in respect of a student attending a State primary or secondary school Notwithstanding sub section (1) the state primary or secondary schools may impose such other charges in such manner as may be prescribed.

OTHER COSTS

Exam fees and schools supplies are all free. Material for school uniforms is sold at a subsidized cost. (Rs 20 per metre (equivalent of **USD 1.00**).

Transport at subsidized costs of Rs 02 one way equivalent of **USD 0.11**. This cost concerns students who live within 3 kilometres from the school.

No compulsory levies on parents.

Lunch which is optional, is available through a subsidized school meal service (Rs 5 equivalent of **USD 0.25**).

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

N/A

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ **Yes:**

5 Years

Access to lower (S1-S3) and middle (S4-S5) Secondary education is free and compulsory. Whereas access to high/upper secondary is selective and free. Access to TVET is provided through relevant programme of

study at the level of S1-S5. Technical and Vocational Education is available in all the professional centres. (Refer to Professional Centres section 2.3)

Please list the laws and policies that ensure the and describe whether direct and indirect costs are covered (such as free availability of secondary education)

The Seychelles Government has approved the setting up of a new National Technical Secondary School.

“For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Tuition fees (Refer to 42.1 above)

OTHER COSTS

Exam fees and schools supplies are all free. Material for school uniforms is sold at a subsidized rate. (Rs 25 per metre (equivalent of **USD 1.25**)

Transport costs (See above). (Rs 02 one way (equivalent of 10 cents) concern students who live within 3 kilometres from the school. No compulsory levies on parents. Secondary students are provided with a Bus pass with an annual subsidized contribution of SR 125/- (equivalent to **USD 6.26**) from parents.

For secondary regional schools, transportation subsidized fees are available for students residing 3km or more away from the regional secondary schools under the responsibility of the ASP.

Lunch (Refer to above) is provided at a very low price (Rs 5 (equivalent of **USD 0.5**).

No Compulsory levies on parents.

The table below illustrates the total number of students enrolled by gender and number of classrooms in state and private secondary schools, 2018

<i>Table 7 : Total Number of Students Enrolled by Gender and Number of Classrooms in State and Private Secondary Schools, 2019</i>					
Schools	Male	Female	Total	Classes	Teacher /Pupil ratio
State (11)	3143	3071	6214	269	23
Private (4)	377	412	789	35	22
Grand Total	3520	3483	7003	304	23

Source: EMIS Education Statistics Booklet, December 2019

Additional information

➤ **School Nutrition Policy (under revision)**

The School Nutrition Policy has been developed in collaboration with the Ministry of Health. It prescribes guidelines for all school meal providers (for lunch) and school tuck shops. The policy ensures that children are provided with a balanced meal for lunch and also that the tuck shops sell nutritious snacks and drinks. The operators are closely monitored by the Ministry of Education officials and Health professionals.

- In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Main challenge: Not all schools have the necessary facilities to accommodate all categories of students in the context of inclusive education

☐ No: What are the measures your government intends to take to ensure free secondary

N/A

☐ No: What are the measures your government intends to take to ensure free secondary education?

–Ensure quality monitoring of the Law. Laws exist

The Education (Amendment) Act 2017 makes provision for an Attendance Officer.

Article 59

Attendance Officer

The Minister may, by order in writing, designate a member of the staff of a school as attendance officer.

Article 60

Powers to enter premises etc...

An attendance officer who has reasonable cause to believe that a person is acting in contravention of section 57, on presenting his or her authority, may at any time — (a) enter any premises and make such enquiries as are necessary to determine whether a child of compulsory school age is frequenting, visiting, residing or employed on, the premises; and (b) stop and question any child who appears to be of compulsory school age but is not at school. 61.

- In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Is secondary education (middle/high) compulsory in your country?

No

High also referred as Upper Secondary education in Seychelles is not compulsory. Age of enrollment: 17 + years -18 years: Duration: 2 years

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

Table 9 below illustrates the total number of Students Enrolled at SALS 2019 State Upper Secondary) (74% females & 26% males)

Table 9 : Total Number of Students Enrolled SALS 2019 Upper Secondary)							
MODE	Year 1		Year 2		TOTAL		Grand Total
	Male	Female	Male	Female	Male	Female	
Full time	14	66	27	67	41	133	174
Part time	3	1	5	7	8	8	16
Grand Total	17	67	32	74	49	141	190

Source: EMIS Education Statistics Booklet, December 2019

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

According to the laws of Seychelles there are 11 years of compulsory education. Students are **16+** years when they complete the fifth secondary year (Key Stage 5).

Legal employment age is **15 years**.

**Laws of Seychelles Chapter 69 Employment Act
CONSOLIDATED TO 1 DECEMBER 2014 [3rd April, 1995]**

1.2) Article 35 (c) Right to Work

The State recognizes the right of every citizen to work and to just and favorable conditions of work and with a view to ensuring the effective exercise of these rights

(C) the State undertakes to promote vocational guidance and training to ensure the right to of work

Additional information

➤ **LAWS OF SEYCHELLES**

CAP 42 Constitution of the Republic of Seychelles 1993

worker” means a person of the age 15 years and above in employment in Seychelles or on a Seychelles ship or aircraft or employed in Seychelles for service in an agency of the Government or diplomatic mission of Seychelles abroad and a trainee;

Right of minors

“The State recognizes the right of children and young persons to special protection of their immaturity and vulnerability and to ensure effective exercise of the right the State undertakes to

(a) Provide that the minimum age of admission to employment shall be fifteen years, subject to exceptions for children who are employed part-time in light work prescribed by law without harm to their health, morals or education

(b) to provide for a higher minimum age of admission to employment with respect to occupations prescribed by law which the state regards as dangerous, unhealthy likely to impair the normal development of a child or young person”.

Please note in 2019 out of **1088** students enrolled in S 5 (Fifth year of Secondary) State schools, a total of 72 students (43 males and 29 females) did not complete their studies which represented **6.6%** of the S5 population.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training

☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

Higher Education in the Seychelles context as per the Tertiary Education Act, 2011 means Tertiary non university education and training institutions (Professional Centres) and Tertiary University Education and Training (University).

Implementation of the Tertiary Education Act (2011)

- Establishment of a Tertiary Education Commission
- Setting up of 9 Professional Centers which have a Board of members and a Charter since 2015.

Tertiary university education includes academic as well as advanced vocational or professional education. It comprises International Standard Classification of Education (ISCED) Levels 5, 6, 7 and 8, which are labelled as short-cycle tertiary education, Bachelor's (or equivalent) level, Master's (or equivalent) level, and Doctoral (or equivalent) level, respectively.

The Tertiary Education Sector (Tertiary Education Commission (TEC) and Tertiary Education and Human Resource Development (TEHRD) are heavily involved in gender based activities.

It is part of Seychelles Qualifications Authority (SQA)'s process of accreditation of institutions for them to have measures in place to accommodate gender differences and cater for physical disabilities.

The general trend for enrolment at the level of Professional Centres, that is Tertiary Non University Institutions, tends to be higher for males in technical oriented programmes of study while girls tend to opt for more academically oriented programmes of study.

⁹Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

¹⁰Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

¹¹ See: Article/Paragraph 1(1).

LEGAL REGULATORY DOCUMENT

Tertiary Education Act (2011)

Functions of the Act 2011

(2) The TEC shall make recommendations to the relevant authorities on —

- *the development of tertiary education;*
- *the charters of tertiary education institutions;*
- *the implementation of procedures and standards set by the Seychelles Qualifications Authority;*
- *policies and guidelines on tertiary education institutions functioning jointly or in association with one another in or outside Seychelles;*
- *the performance of tertiary education institutions and their use of funds provided by the Government or otherwise; and*
- *policies and guidelines on the involvement of tertiary education institutions in business activities.*

5.(1) Tertiary education institutions shall, for the purposes of this Act, consist of Universities and Professional Centres.”

PART 4 - PROFESSIONAL CENTRES (Tertiary Education Act (2011))

Tertiary Non University

28.(1) The Minister shall establish Professional Centres on the recommendation of the Tertiary Education Commission.

With the following functions:

(2) Professional Centres shall be responsible for preparing trades persons and technicians of practical orientation capable of working in specific fields of work.

(5) “The main goals of a Professional Centre :

- (a) create conditions and provide instructions for learners to acquire the relevant qualifications in vocational, technical, technological and applied scientific subjects;*
- (b) promote and facilitate conditions for lifelong learning;*
- (c) consult representatives of business and industries with a view to developing basic applied research of relevance to Seychelles, the region and globally;*

- Professional Centres:

1. Seychelles Tourism Academy (STA)
2. Seychelles Institute of Art and Design (SIAD)
3. Seychelles Maritime Academy (SMA)
4. Seychelles Institute for Distance and Open Learning Centre (SIDOL)
5. Seychelles Institute of Technology (SIT)
6. Seychelles Institute of Agricultural and Horticulture (SIAH)
7. National Institute for Health and Social Studies (NIHSS)
8. Seychelles Institute of Business studies and Accounting (SBSA)
9. Seychelles Institute of Teacher Education (S.I.T.E.)
- 10 The Guy Morel Management Institute (TGMI)

Entrepreneurship education is now in all the PCs so that graduates have relevant skills.

In the **Learner rights and responsibilities** Policy which governs PCs), it is stated at

6.2.1.6 Freedom from discrimination and sexual harassment;

“Learners have a right to be free from illegal discrimination and sexual harassment.”

Members of the Professional Centre (PC) community have certain rights and responsibilities, including an obligation to deal ethically and fairly with other members and to not discriminate or harass.

(Learner Rights and Responsibilities Policy, 2019).

b) In the **Pregnancy Policy** it is stated at 1. *“The Professional Centre values the diversity of its learner population and is strongly committed to creating and sustaining a positive learning experience for all”.*

The Policy aims to *‘assist and support learners who are about to become parents or have become parents during the period of their training programme of study with the Professional Centre.’*

PART 5 - Learners, Their Rights And Duties (Tertiary Education Act (2011)

(a) One of the main functions of a University under law is under Part 3, 19 (k) of the Tertiary Education Act is to

” promote gender balance and equality of opportunity among learners and employees of the University.”

34.(1) The conditions governing the admission of learners to a tertiary education institution shall be specified in its charter.

(2) Persons shall have the right to apply for admission to one or more tertiary education institutions.

*(3) The Minister may, on the advice of the Tertiary Education Commission, make regulations in respect of the admission of **foreign learners**.*

Please note the Cabinet of Ministers has approved the policy framework for protection of foreign learners to be further developed into a regulation.

University : University of Seychelles (University Education and Training (UniSey)

In 2019, there were 1032 learners (767 females and 265 males) enrolled in the University of Seychelles (UniSey) of which 59% were enrolled on a part-time basis. There were 34 teaching staff (17 males and 17 females) at UniSey of which Seychellois accounted for half of them.

Source: *EMIS Education Statistics Booklet, December 2019*

The table below shows the number and percentage of learners enrolled in UniSey by Mode, by Year Level and by Gender, 2019

<i>Table 25: Number and Percentage Of Learners Enrolled In Unisey By Mode, by Year Level and by Gender, 2019</i>									
MODE	YEAR 1		YEAR 2		YEAR 3		TOTAL		Grand Total
	M	F	M	F	M	F	M	F	
Full time	58 (6%)	92 (9%)	53 (5%)	101 (10%)	28 (3%)	93 (9%)	139 (13%)	286 (28%)	425 (41%)
Part time	68 (7%)	229 (22%)	56 (5%)	239 (23%)	2 (0%)	13 (1%)	126 (12%)	481 (47%)	607 (59%)
Grand Total	126 12%	321 31%	109 11%	340 33%	30 3%	106 10%	265 26%	767 74%	1032 100%

The table below shows the number and percentage of learners enrolled in UniSey by Mode, by Year Level and by Gender, 2019

<i>Table 11: Total Number of Students (Full-Time, Part-Time & Apprenticeship) Enrolled in Tertiary Non-University Education and Training Institutions by Gender and by Year, 2019</i>									
Professional Centres	Male	Female	Male	Female	Male	Female	Male	Female	Grand Total
(10)	Y 1	Y1	Y 2	Y2	Y3	Y3	Total		
Grand total	432	851	290	492	82	244	804	1587	2391

Source: EMIS Education Statistics Booklet, December 2019

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:
 - *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
 - *Non-differential treatment, including of foreign students*

There are no reported cases of discrimination in admission of students at higher education level, including Professional Centres. Non Seychellois students (Foreign) accessing higher level education have to pay for their tuition fees whereas tuition is free for Seychellois students.

As per the SADC Education and Training Protocol, 1997, there is no discrimination for tuition fees between Non Seychellois and Seychellois students accessing University education.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural

Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

Higher education is generally free of charge: **No.**

Tuition fees for Tertiary Education (Non University)

Education in Tertiary Non University (Professional Centre) is free. Students from PC upon successful completion of their studies, can obtain free scholarships under the Government scholarship scheme 2013 if they meet set criteria in relevant priority fields of study.

☒ **Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience**

Yes. Students need to meet the entry requirements of the training providers/ institutions in order to access training opportunities.

☒ Higher education is accessible through financial incentives and scholarships

Yes.

Scholarships

In the **Education Amended (Act) 2017 at 42 (4)** it is stipulated:

“Government may grant scholarships and bursaries to students of post –secondary and tertiary levels in accordance with regulations”.

In 2013 The Agency for National Human Resource Development established a scholarship scheme *The Government of Seychelles Scholarship Scheme 2013 (under review)*.

The Government Scholarship Scheme (2013)

Main aims and objectives:

- *enhance tertiary training in order to increase the number of Seychellois graduates in the overall endeavor to have a highly skilled work force and reduce dependence on foreign labour in national priority areas*
- *ensure that tertiary level training in the national priority areas are better aligned with the forecasted labour market requirements*
- *increase access to cost effective tertiary training in affordable venues, both locally and abroad without compromising standards*

(Refer to The Government Scholarship Scheme on www.edu.gov.sc)

The ANHRD has set criteria for students to qualify for a government sponsored scholarship. Furthermore, the scheme guarantees scholarships for 5 best performers in each Professional Centre to access higher level training. Scholarships are awarded subject to availability of funds to professional centres, Advanced level Undergraduate and Postgraduate students who must meet set criteria set by the Scheme.

An average of 290 Scholarships per year are awarded to students.

Government Scholarship Students enrolled in tertiary education courses overseas.

In 2019, a total of 865 students, **(312 males and 553 females)** were enrolled in tertiary level education and training institutions locally and overseas under the Agency for National Human Resource Development (ANHRD) Scholarship programme.

279 students (78 males and 201 females) were enrolled at University of Seychelles, 37 students (7 males and 30 females) were enrolled at The Guy Morel Institute and the remaining 516 students (207 males and 309 females) were enrolled with various overseas institutions.

A total of **307 scholarships (94 males and 213 females)** were approved for the year 2019.

Source: *EMIS Education Statistics Booklet, December 2019*

☒ Higher education is accessible through positive or affirmative action measures

☒ Higher education is accessible through credit transfer system between states

It is to be noted that at the South African Development Community (**SADC**) level, the Seychelles qualifications framework has been aligned with the SADC qualifications framework since 2019 which means that Seychelles qualifications can be recognized more easily in SADC countries.

☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Access to Scholarships:

Challenges

Scholarships for further studies

Seychelles, being a high income country for a Small Island State, is finding it more and more difficult (compared to the past when it was a middle income country) to benefit from foreign scholarships in the context of bilateral cooperation.

In the event that scholarships are awarded, the majority are not fully funded and are cost sharing between Seychelles government and the country providing the scholarship.

The medium of instruction for the studies also poses a problem in that students opt for English speaking countries where they feel more comfortable with the language. Additionally, the underperforming secondary cycle of education remains a challenge in increasing access to higher education.

2.4 Adult Education and Alternative Learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

Seychelles Institute of Distance and Open Learning (SIDOL) established through the Tertiary Education Act (2011) replaced Adult Learning and Distance Education Centre (ALDEC). Since August 2015, SIDOL is operating under its Charter. It serves as a national center of expertise in open distance learning. It undertakes and promotes training and development in open and distance learning. It provides access to education and lifelong learning for out of school youths and adults seeking to upgrade their knowledge and skills, develop life skills and enhance their opportunities for employment. It aims to provide opportunities for all and provides a safe and healthy environment for learning.

Main provisions of the Charter of SIDOL include:

- *Formulation of learning programmes in areas responding to learners expressed needs in conformity with guidelines for subject areas recognized by recognized authorities.*
- *Provision of practical and other forms of training for personal and professional development and the continuous advancement of learners.*

SIDOL does not provide full time programmes of study. It provides the following categories of part time courses; the academic area involves different subjects at Cambridge (International General Certificate of Secondary Education (IGCSE) and Advanced Level (A LEVEL).

Short courses and Literacy classes offer short modular skills oriented courses. They are mostly of 30 hours duration.

Literacy courses at Levels 1, 2 and 3 in either English, French, Seychellois Creole or Numeracy (Local level) are available.

☒ Provision of education for persons who have not received or completed the whole period of their primary education

Free Literacy classes in the community in English, French, Creole and numeracy are available in the districts for youth and adults

According to the Seychelles Integrated Adult Learning Survey (SIALS) Initiated in 2008, the percentage of participants considered as not literate or not numerate was 2.8 and 6.1, respectively, giving a national literacy rate of **97.2%** and numeracy rate of **93.9%**.

☒ Provision of literacy programmes

Literacy classes are available in languages namely: English, French, Creole and numeracy. They are free of direct cost to learners in the community (in districts).

☒ Provision of appropriate learning and life-skills programmes

- *Unemployment Relief Scheme* whereby youths and adults can acquire life skills and an allowance while waiting for a job
- *Skills development Programme* where youths (drop outs) can learn new skills in preparation for employment. (Both programmes are under the responsibility of the Department of Employment)

☒ Provision of free of charge learning opportunities

With the Seychelles Institute of Distance and Open Learning, all literacy classes are free of charge for learners.

☒ Provision of flexible learning pathways

With SIDOL, there is provision for participants to attend classes on a part-time basis at different times during the day whichever modality fits their schedule.

☐ Provision of professional training and qualifications

☐ Other:

- Please elaborate further on the measures taken:

--

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in

SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

☒ Establishment of minimum norms and standards in education

Establishment of minimum norms and standards in education

➤ **SEYCHELLES QUALIFICATIONS AUTHORITY. (SQA)**

The Seychelles Qualifications Authority (SQA) was established in 2006 following the enactment of the Seychelles Qualifications Authority Act in 2005. To note this Act is under review.

Through its **Seychelles Qualifications Authority Act (2005)**, the SQA is mandated to develop, implement and maintain a national qualifications framework and to provide for the quality assurance of the education and training system nationally. Amongst others, the Act provides for:

- Promotion of quality and standards of education and training through a system of accreditation, validation and quality assurance;
- Establishment of criteria for, and monitoring of process of, recognition of competencies outside formal education and training;
- Evaluation and establishment of equivalence of foreign qualifications;

Recognition of Prior Learning (RPL)

As part of its legal mandate established by the Act, No. 12 of 2005, the Seychelles Qualifications Authority (SQA) establishes criteria for and monitors the process of recognition of competencies which involves the identification, mediation, assessment and acknowledgement of knowledge and skills obtained through informal, non-formal and formal learning and training.

The concept of RPL has been officialised through the policy in 2017. In addition to the policy other approved documents include *The National Guidelines for the Implementation of RPL; Guidelines on Fees for RPL and Schedule of Allowances for RPL Practitioners*.

The implementation of the policy started in 2018.

This policy applies to Education and training institutions, professional bodies, RPL practitioners and RPL candidates as well as all qualifications and part-qualifications registered on the Seychelles NQF and offered in the Seychelles.

The main purpose of the RPL policy is to ensure:

- (a) *Facilitation of access to further study and lifelong learning opportunities, transfer and award of credits leading to certification of qualifications within the National Qualifications Framework (NQF), ... promoting equity of access and fair chances to all learners;*

Please elaborate further on the measures taken by SQA:

- Presentations to sensitise stakeholders, decision makers and government departments on RPL
- Public sensitisation on public media ongoing.
- Organisation of training and workshops for RPL Practitioners.
- Publication and distribution of leaflets for RPL candidates and the general public.

To note that SQA has registered a total number of 80 RPL applicants from July 2018 to date. 38 candidates have been awarded with a full qualification.

Areas in which candidates have been awarded with a full qualification include mainly medical, Infrastructure related services, Nutrition, Agriculture and Horticulture.

Refer to SQA WEBSITE www.sqa.sc for more information on SQA Act, RPL and other documents.

- ☑ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☑ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

➤ **COMBATTING STEREOTYPING AND STIGMATISATION**

In 2018 to combat bullying in schools the Ministry has produced a

➤ **National Anti-Bullying Policy And Strategy for Primary, Secondary Schools and Professional Centres (2018)**

As part of the student Code of Conduct the Policy and Strategy outline key principles of best practices for both preventing and tackling bullying and require all educational institutions to commit to these principles in their Anti-Bullying Operational Procedures and Guidelines.

As part of the student Code of Conduct the Policy and Strategy outline key principles of best practices for both preventing and tackling bullying and require all educational institutions to commit to these principles in their Anti-Bullying Operational Procedures and Guidelines.

Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

Measures

To note there are three key policies to support behaviour management in primary and secondary schools;

- *Code of Conduct for primary schools 2010*
- *Code of Conduct for secondary schools 2010*
- *Behaviour policy 2010*

All three are under review for implementation in 2021.

➤ **Learner rights and responsibilities Policy for Professional Centres (2018)**

6.2.1.6 Freedom from discrimination and sexual harassment Learners have a right to be free from illegal discrimination and sexual harassment.

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Provision is made in the Education (Amendment) Act 2017 for assessment.

87. (1) The Minister may make regulations for carrying into effect the principles and provisions of this Act.
(2) *Without prejudice to the generality of subsection (1), the Minister may make regulations providing for*

—
(u) the manner of conducting examinations in schools and educational institutions including examinations for improvement of grades;

(79) Assessment

Assessments shall be conducted in accordance with regulations at the end of each key stage of primary and secondary schooling to evaluate the performance of students in relation to the targets of the national curriculum.

Examinations are organized by the Assessment and Certification Section (ACS) of the Ministry internally and nationally for end of Key Stages 1 -5 in examinable subjects of the curriculum.

Key Stage 2 (Primary 4)

Key Stage 3 (Primary 6)

Key Stage 4 (Secondary 3)

Key Stage 5 Secondary 5

At end of Key Stages 1-4 assessments are organized at the national level only. End of Key Stage 5 assessment are organized and coordinated by the ACS. The IGCSE subjects currently being followed by students in state and private schools. The French equivalent of IGCSE the DELF Scolaire B1, at the end of S5 is also coordinated by ACS and Alliance Française in Seychelles.

For details on national and international exams results refer to Education Statistics 20198 on MERHD website www.edu.gov.sc

2.6 Education personnel

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

☒ Performance monitoring systems

☒ Measures taken to increase women in leadership positions in education

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions

There is a Teachers' Scheme in place to ensure teachers are paid in relation to their qualifications and experience (2017).

The Scheme provides for:

- *A clearly defined career structure to attract and retain suitably qualified and competent employees in the technical aspects of this profession;*
- *A well-defined job description with clear delineation of duties and responsibilities at all levels within the career structure to enable such employees to understand the requirements and demands of the job;*
- *Standards for recruitment, training and advancement within the career structure on the basis of qualifications, merit and ability as reflected in work performance and results;*
- *Reward for continuous and long service by the awards of gratuity benefits at regular intervals and high performance. (Teachers' Scheme 2017)*

The scheme is designed for all Seychellois Teachers and Lecturers. However, expatriates employed in the teaching profession by the Ministry of Education and Human Resource Development do receive benefits from the scheme depending on the terms of employment.

☒ Initial training and continuous professional development is provided

Initial teacher training of 3 years duration is provided at S.I.T.E. Compulsory continuous teacher development providing induction, in-service and programmes are organized for different subjects during school holidays (Easter, August and January). In all primary and secondary schools there is a 90 minute weekly professional development session for Teachers (PD) according to schools' priorities.

A Teacher Management and Development (TMD) Policy has been developed in 2020 and approved for implementation effective January 2021. This policy is linked to the Education (Amendment) Act 2017 and Tertiary Education Act 2011. The Policy stems from one of the strategic interventions of the *MTS 2018-2022 and Beyond* which calls for strengthening teacher management and development for the professionalization of the teaching profession and better learning outcomes.

The main provisions of the policy are to:

4.4.1 Raise the status of the teaching profession using equitable and transparent criteria.

4.4.2 Enhance the educational institution management and administration system for effective leadership and improved teaching and learning environment at all levels of the education system.

4.4.3 Empower teachers to have a voice and be represented in decision-making.

4.4.4 Standardise the teaching profession, qualifications and practice across all levels of education.

4.4.5 Strengthen pre-service, in-service and continuing professional development for effective delivery of quality learning at all levels of the education system.

Refer to policy on Seychelles TMDP on MEHRD website www.edu.gov.sc

☒ Minimum standards and qualifications are required for the teaching profession

Only teachers holding a teacher's certificate in Education can teach. Entry requirements for teacher training are different from Primary and Secondary.

In 2019, in State and Private Institutions, 30% of teachers was male and 70% female.

The table below shows the number of Teachers by Level, Gender and Nationality in State and Private Institutions, 2019.

<i>Annex XII Number of Teachers by Level, Gender and Nationality in State and Private Institutions, 2019</i>									
Level	Local			Expatriate			Total		Both sexes
	Male	Female	Total	Male	Female	Total	Male	Female	
Creche	0	141	141	1	25	26	1	166	167
Primary	67	430	497	24	82	106	91	512	603
Special Education	2	23	25	0	0	0	2	13	25
Secondary	128	248	376	152	110	262	280	358	638
Upper Secondary A level	7	14	21	19	18	37	26	32	58
Tertiary non-University Education and Training	71	82	153	32	10	42	103	92	195
TOTAL	275	938	1,213	228	245	473	503	1183	1, 686

Source: EMIS Education Statistics Booklet, December 2019

☑ Measures taken to strengthen the social status and attractiveness of the teaching profession

➤ Review of *Teacher Appraisal*

The Handbook of Professional Competency and the Teacher Appraisal Scheme reviewed in 2017 aim to guide the process of selection and evaluation of teachers' performance and professional development to identify cost effective means of improving the conditions of service..

➤ Allowance students under review

➤ National campaign with media coverage for the teaching profession is being conceptualised

➤ S.I.T.E. is offering training at Diploma Level (with exit point at Advanced Certificate) to raise the quality and efficiency of supply teachers with no qualifications in order to obtain a recognized qualification on the National Qualifications Framework (NQF); and training at Advanced Diploma to raise the qualification of teachers holding a Diploma Part I qualification through the Blended Learning Mode (BLM). The training started in 2018 with 200 teachers, 172 are still enrolled.

➤ A Master's programme leadership run by the University of Seychelles involving over 20 qualified teachers was launched in 2018 as part of their professional development. A second cohort has started the course in 2020.

➤ Aspiring Teacher Programme

The Teacher Management Development (TMD) Section and S.I.T.E are engaged in a campaign to attract secondary students to take up teaching as a profession.

A comprehensive description of the ATP programme will be broadcast on the media and the wider public and parents), to highlight its objectives and its national importance to the future development of a quality teaching profession

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

The Seychellois Charter of Fundamental Human Rights and Freedoms (Chapter 3 of the Constitution of the Republic of Seychelles 1993), which incorporates many of the principles of International Human Rights instruments, guarantees 25 rights equally applicable to both men and women. Article 48 of the Constitution provides for the fundamental human rights and freedoms in Seychelles to be interpreted ‘*in such a way as not to be inconsistent with any international obligations of Seychelles.*

The Seychelles Constitution Laws of Seychelles guarantees that:

“Every person has a right to equal protection of the law including the enjoyment of the rights and freedoms set out in this Charter without discrimination on any ground except as is necessary in a democratic society.”

Seychelles has ratified the following Human Rights Treaties:

TITLE	Accession	Ratification	Entry into force
International Convention on the Elimination of All Forms of Racial Discrimination	07.03.78		07.04.78
International Covenant on Economic, Social and Cultural Rights	05.08.92		05.11.92
International Covenant on Civil and Political Rights	05.05.92		05.08.92
Convention on the Elimination of All Forms of Discrimination against Women 04.06.92A/ 04.06.92E	04.06.92		04.06.92
Convention against torture and other cruel, inhuman or degrading treatment or punishment	04.06.92 A		04.06.92 E
Convention on the Rights of the Child	07.09.90		06.12.90
International Convention on the Protection of the Rights of all Migrant Workers and Members of their Family	15.12.94		01.04.95
Convention on the Rights of Persons with Disabilities 30.03. 07 Signature		2.10.09	1.11.09
African Charter on the Rights and Welfare of the Child 1990		27.02.92	29.11.99
African Union Youth Charter 2006 Article 13 Education and Skills Development.	11.02.11		

Source: Seychelles Department of Foreign Affairs

¹²Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes Human Rights Education

The theme of Human Rights education is incorporated in the Personal Social Citizenship Education (PSCE) subject which is compulsory in the prescribed national curriculum under different themes per secondary level.

- Secondary Year 1: My Identity
 - Nationality
 - You as a Citizen
- Secondary Year 2: The Constitution of Seychelles
 - Rights and responsibilities conferred by the Constitution on the Right of the Child
 - National Symbols
 - National Territory
- Secondary Year 3: The branches of government
 - The Rule of Law
 - The Election process
- Secondary Year 4: What is The Convention on the Elimination of All Forms of Discrimination against Women (CEDAW)
 - The Connection between Womens' Rights and Children's' Rights

Secondary Year 5: Good governance

☒ Educational and/or extracurricular activities are organized on human rights education

Celebration of Human Rights Day 10 December in all schools through a variety of inter School competitions such as poems, essays, plays, fairs, projects talks... with media coverage (both Broadcast and Print).

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

MIGRANT CHILDREN IN SCHOOLS

Seychelles has no refugee or migrant issue. However the country depends a lot on imported labour especially in the construction sector. However most of them are not accompanied by their children. In the event that workers have children of school compulsory age they have to enroll in the State Schools free of charge or in the fee paying private schools.

☐ Constitutional laws and/or legislation protect the right to education of national minorities

- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs

☐ Other:

N/A

- Please provide a brief description of the provisions:

N/A

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

In the Current Education policy there is no mention of other languages apart from the three national languages Creole, English and French which are taught in schools.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹³

In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG 4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

N/A

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

☐ Specific training for educational staff

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- **Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?**

Yes ☒ No ☐

- Please provide a brief description:

Education (Amendment) Act 2017 (S1 43 of 2005)

Education (Private Educational Institutions)

Part 3: Private educational institutions

“private educational institution” means a private school or educational institution or class regularly attended by 5 or more students whether on a part-time or full time basis which is owned, managed and financed by an individual or a body incorporate or unincorporate and is registered under this Act;

17. *This Act applies to every private or educational institution providing services relating to –*

- (a) formal early childhood education;
- (b) primary education;
- (c) special education;
- (d) secondary education;

The Law further lists of requirements such as classrooms, equipment, sanitary facilities, registers, conditions of premises...admission of students

(22)The Principal Secretary shall upon receipt of an application under subsection (1) cause the private school or educational institution to be inspected

(3) Where a private school or educational institution in respect of which an application is made under subsection (1) has been inspected, the Minister shall, subject to any condition that he may specify, approve the registration of the school or educational institution if he is satisfied.

(a)that the standards laid down by the Ministry are observed; and

(b) the headteacher or director of the school or educational institution holds the requires qualifications.

- **Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹⁵ explicitly apply to private educational institutions?**

¹⁵See: Article/Paragraph 1(1).

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

No legal document on discrimination but it is stipulated in the **Education (Amendment) Act 2017**
Part 3 Private Educational Institutions

Complaints of discrimination

39. (1) Where a complaint is made by an interested party that a private school or educational institution has refused to admit a child or has expelled a student on account of the race, religion, or political affiliation of, or on any other unreasonable ground of discrimination relating to, the child, student or parent, the Principal secretary shall hold an inquiry into the complaint.

(2) The Principal Secretary shall communicate his or her determination in writing to the complainant and the relevant private school or educational institution and the determination may include such directions to the proprietor of the private school or educational institution as may be necessary to redress the grievance complained of.

The table shows the total number of students and classes by gender in private and **Primary and Secondary** schools, 2019

Table 5 Total Number of Students and classes by Gender in Private Primary Schools, 2019					
School	Gender		Total	Classes	Pupil/class ratio
	Male	Female			
Ecole Française	59	78	137	6	23
Independent School	196	248	444	18	25
International School of Seychelles	230	207	437	12	36
Trotters' Stop	37	52	89	5	18
Vijay International	41	65	106	6	18
Private Total	563	650	1213	47	26

Table 7 Total Number of Students and classes by Gender in Private Secondary Schools, 2019					
School	Gender		Total	Classes	Pupil/class ratio
	Male	Female			
Ecole Française	36	50	86	5	17
Independent School	174	186	360	15	24
International School of Seychelles	120	133	253	10	25
Vijay International	47	43	90	5	18
Private Total	377	412	789	35	23

Source: EMIS Education Statistics Booklet, December 2019

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

Education (Amendment) Act 2017: Religious education in State schools

Article 80

(1)

It shall not be a condition of admission or attendance of any student in a State school that the student participates in religious education or attended or abstains from attending any place of religious instruction or worship

(2)

Where the parent of any student attending a State school, requests that a student be excused from attendance at collective worship, any religious observance or any education or instruction in religious subjects at the institution or elsewhere , then, unless the request is withdrawn, the student shall be so excused.

In all primary and secondary State schools (6+ -16+ years) there is a weekly religion class of 80 minutes on the formal timetable. Students not wishing to attend those classes are free to stay in class or go to another room like the library.

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

Constitutional laws and/or legislation protect the right to education of national minorities

No

- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

N/A

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

N/A

2.10. Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁶

In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁷ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG 4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

N/A

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

¹⁶ Articles/Paragraphs 1 and 3.

¹⁷ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

☐ Challenges related to equitable access and inclusion in education (such as poverty and socioeconomic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

☒ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Despite having an Inclusive Education policy (2013) implementation remains a challenge due to shortage of specialists in the area of special needs and adequate resources and capacity building initiatives.

Shortage of Seychellois teachers at both primary and secondary level.

This means the Ministry has to rely heavily on expatriate teachers particularly for certain subjects such as Maths and Science at secondary level. Despite legal and policy frameworks in place on student behaviour management, students' discipline remains a challenge. This has a negative impact on the quality of teaching and learning.

In addition, over the years, recruitment and retention of young Seychellois into the teaching profession remain a major challenge. This challenge has been compounded by the democratization (Free access to all) of education over the years. Out of 140 intake capacity at S.I.T.E in 2019, only 30 trainees for all levels were accepted on a programme of study (19 Early Childhood & Primary, 4 for secondary programmes and 8 for upgrading at A' Level to later join a training programme for secondary teachers.

☒ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

Data collection and management remains a challenge despite several efforts to build the capacity of staff through Unesco UIS training opportunities.

Governance: Despite the legal provision for the establishment of a School Council enacted in 2010 to enhance governance, through S.I.65, the concept of school governance is still new in the education system and as a consequence is taking time to be institutionalized.

The Seychelles Qualifications Authority in place since 2005 faces significant challenges arising from trained human resources in inspection and quality assurance, inadequate number and insufficiently trained quality assurance officers based at the level of institutions.

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Effectiveness of methods

i) The Programme Performance Based Budgeting (PPBB) approach adopted in 2013 has allowed the Ministry to focus on resources for established priorities to assess effectiveness and efficiency towards achievement of results measured by performance indicators. This has not only increased transparency and accountability, but has brought about adjustment of policies, programmes and internal management systems based on the results obtained.

ii) The development and consolidation of school governance process through delineation of responsibilities for schools. A framework is being finalized for delineating responsibilities and accountabilities for headquarters, governance entities (School Council) and school Leadership and Management.

- iii) To address the shortage of teachers' provision, a Section has been created to coordinate all matters relating to recruitment, retention, development and deployment of teachers through the new Teacher Management and Development Policy.
- iv) Work is being undertaken in collaboration with the Department of Information Communications Technology (DICT) to put in place a more robust EMIS for more reliable data to inform decision making for policies and regulatory frameworks.
- v) The revision of SQA Act will bring about improvement in quality assurance measures and strategies.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items could be ticked/mentioned)

☒ Translation of the Convention/Recommendation into the national and possibly local languages

A project is underway to translate the Convention in the mother tongue the creole language.

☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education

☒ Increased public awareness through advocacy material on the Convention/ Recommendation or the core principles of the right to education

During Teachers International Day in October

☐ Activities undertaken or supported by the National Commission to promote nondiscrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

REFERENCES

Laws of Seychelles CAP 42 Constitution of the Republic of Seychelles (1993)

Regulatory frameworks:

Agency for National Human Resource development Act 2013 (Act of 14 of 2013)

Civil Status Act Marriage Act 1980

Education (Amendment) Act, 2017 (Act 28 of 2017)

Education for a Learning Society Policy Statement of the Ministry of Education (April 2000)

Guidelines for the Management of the Dedicated Fund by Schools September (2018)

Institute of Early Childhood Development Act 2014 (IECD Act 28 of 2014)

Inclusive Education Policy March (2015)

Laws of Seychelles Chapter 69 Employment Act (2014)

Learner Rights and Responsibilities Policy for PCs (2019):
 Learner Rights and responsibilities 6.2.1.6 Freedom from discrimination and sexual harassment for PCs (2019)
 National Anti-Bullying Policy and Strategy for Primary, Secondary Schools and Professional Centres (2018)
 S1 43 (Private Educational Institutions Regulations) 2005
 Seychelles National Development Strategy (2019-2023)
 Seychelles Qualifications Authority Act (2005)
 Teenage Pregnancy Support Policy December (2005)
 Tertiary Education Act (2011)
 Teachers' Scheme of Service (2017)
 The Government of Seychelles Scholarship Scheme January (2018)
 The National Council for Disabled Persons Act (1994)
 The National Gender Policy (2016)
 The National Guidelines for the Implementation of RPL; Guidelines on Fees for RPL and Schedule of Allowances for RPL Practitioners (2018)

WEBSITES

- Institute of Early Childhood Development (IECD) website: <http://www.iecd.gov.sc/>
 - **Ministry of Education and Human Resource Development (MEHRD) website:** <http://www.edu.gov.sc/>
- To note the MEHRD'S website is under construction. However certain education documents can still be accessed on the present website.
- Republic of Seychelles Legal documents: <http://seyliv.org/greybook>
 - SQA: www.sqa.sc